

HOUSE No. 4340

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, July 31, 2025.

The committee on Financial Services, to whom was referred the petition (accompanied by bill, House, No. 1288) of Edward R. Philips relative to telehealth parity for nutrition counseling, reports recommending that the accompanying bill (House, No. 4340) ought to pass.

For the committee,

JAMES M. MURPHY.

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The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to telehealth parity for nutrition counseling.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 30 of chapter 32A of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by inserting the following definition:-

3 “Medical nutrition therapy” the provision of nutrition care services, including nutrition
4 counseling, provided by a licensed dietitian/nutritionist within the field of dietetics and nutrition
5 as defined in section 201 of chapter 112 of the General Laws, aimed at prevention, delay,
6 management, or treatment of a disease or condition.

7 SECTION 2. Said section 30 of said chapter 32A of the General Laws, as so appearing, is
8 hereby further amended by striking out subsection (g) and inserting in place thereof the
9 following subsection:-

10 (g) The commission shall ensure that the rate of payment for in-network providers of
11 behavioral health services and in-network providers of medical nutrition therapy delivered via
12 interactive audio-video technology and audio-only telephone shall be no less than the rate of
13 payment for the same service delivered via in-person methods; provided, that this subsection

shall apply to providers of behavioral health services and medical nutrition therapy covered as required under subclause (i) of clause (4) of the second sentence of subsection (a) of section 6 of chapter 176O.

SECTION 3. Section 79 of chapter 118E of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by inserting the following definition:-

“Medical Nutrition Therapy” the provision of nutrition care services, including nutrition counseling, provided by a licensed dietitian/nutritionist within the field of dietetics and nutrition as defined in section 201 of chapter 112 of the General Laws, aimed at prevention, delay, management, or treatment of a disease or condition.

SECTION 4. Said section 79 of said chapter 118E of the General Laws, as so appearing, is hereby further amended by striking out subsection (g) and inserting in place thereof the following subsection:-

(g) The division shall ensure that the rate of payment for in-network providers of behavioral health services and in-network providers of medical nutrition therapy delivered via interactive audio-video technology and audio-only telephone shall be no less than the rate of payment for the same service delivered via in-person methods; provided, that this subsection shall apply to providers of behavioral health services and providers of medical nutrition therapy covered as required under subclause (i) of clause (4) of the second sentence of subsection (a) of section 6 of chapter 176O.

SECTION 5. Subsection (a) of section 47MM of chapter 175 of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by inserting the following definition:-

“Medical Nutrition Therapy” the provision of nutrition care services, including nutrition counseling, provided by a licensed dietitian/nutritionist within the field of dietetics and nutrition as defined in section 201 of chapter 112 of the General Laws, aimed at prevention, delay, management, or treatment of a disease or condition.

SECTION 6. Said section 47MM of said chapter 175 of the General Laws, as so appearing, is hereby further amended by striking out subsection (g) and inserting in place thereof the following subsection:-

(g) Any blanket or general policy of insurance described in subdivision (A), (C), or (D) of section one hundred and ten which is issued or subsequently renewed by agreement between the insurer and the policyholder, within or without the commonwealth, during the period within which this premium is effective, or any policy of accident or sickness insurance as described in section one hundred and eight which provides hospital expense and surgical expense insurance and which is delivered or issued for delivery or subsequently renewed by agreement between the insurer and the policyholder in the commonwealth, during the period within which this provision is effective, or any employers' health and welfare fund which provides hospital expense and surgical expense benefits and which is issued or renewed to any person or group of persons in the commonwealth, during the period within which this provision is effective, shall ensure that the rate of payment for in-network providers of behavioral health services and in-network providers of medical nutrition therapy delivered via interactive audio-video technology and audio-only telephone shall be no less than the rate of payment for the same service delivered via in-person

56 methods; provided, that this subsection shall apply to providers of behavioral health
57 services and providers of medical nutrition therapy covered as required under subclause (i) of
58 clause (4) of the second sentence of subsection (a) of section 6 of chapter 176O.

59 SECTION 7. Section 38 of chapter 176A of the General Laws, as appearing in the 2022
60 Official Edition, is hereby amended by inserting the following definition:-

61 “Medical Nutrition Therapy” the provision of nutrition care services, including nutrition
62 counseling, provided by a licensed dietitian/nutritionist within the field of dietetics and nutrition
63 as defined in section 201 of chapter 112 of the General Laws, aimed at prevention, delay,
64 management, or treatment of a disease or condition.

65 SECTION 8. Said section 38 of said chapter 176A of the General Laws, as so appearing,
66 is hereby further amended by striking out subsection (g) and inserting in place thereof the
67 following subsection:-

68 (g) Hospital service corporations shall ensure that the rate of payment for in-network
69 providers of behavioral health services and in-network providers of medical nutrition therapy
70 delivered via interactive audio-video technology and audio-only telephone shall be no less than
71 the rate of payment for the same service delivered via in-person methods; provided, that this
72 subsection shall apply to providers of behavioral health services and providers of medical
73 nutrition therapy covered as required under subclause (i) of clause (4) of the second sentence of
74 subsection (a) of section 6 of chapter 176O.

75 SECTION 9. Section 25 of chapter 176B of the General Laws, as appearing in the 2022
76 Official Edition, is hereby amended by inserting the following definition:-

“Medical Nutrition Therapy” the provision of nutrition care services, including nutrition counseling, provided by a licensed dietitian/nutritionist within the field of dietetics and nutrition as defined in section 201 of chapter 112 of the General Laws, aimed at prevention, delay, management, or treatment of a disease or condition.

SECTION 10. Said section 25 of said chapter 176B of the General Laws, as so appearing, is hereby further amended by striking out subsection (g) and inserting in place thereof the following subsection:-

(g) Medical service corporations shall ensure that the rate of payment for in-network providers of behavioral health services and in-network providers of medical nutrition therapy delivered via interactive audio-video technology and audio-only telephone shall be no less than the rate of payment for the same service delivered via in-person methods; provided, that this subsection shall apply to providers of behavioral health services and providers of medical nutrition therapy covered as required under subclause (i) of clause (4) of the second sentence of subsection (a) of section 6 of chapter 176O.

SECTION 11. Section 33 of chapter 176G of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by inserting the following definition:-

“Medical Nutrition Therapy” the provision of nutrition care services, including nutrition counseling, provided by a licensed dietitian/nutritionist within the field of dietetics and nutrition as defined in section 201 of chapter 112 of the General Laws, aimed at prevention, delay, management, or treatment of a disease or condition.

SECTION 12. Said section 33 of chapter 176G of the General Laws, as so appearing, is hereby further amended by striking out subsection (g) and inserting in place thereof the following subsection:-

(g) Health maintenance organizations shall ensure that the rate of payment for in-network providers of behavioral health services and in-network providers of medical nutrition therapy delivered via interactive audio-video technology and audio-only telephone shall be no less than the rate of payment for the same service delivered via in-person methods; provided, that this subsection shall apply to providers of behavioral health services and providers of medical nutrition therapy covered as required under subclause (i) of clause (4) of the second sentence of subsection (a) of section 6 of chapter 176O.

SECTION 13. Section 13 of chapter 176I of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by inserting the following definition:-

“Medical Nutrition Therapy” the provision of nutrition care services, including nutrition counseling, provided by a licensed dietitian/nutritionist within the field of dietetics and nutrition as defined in section 201 of chapter 112 of the General Laws, aimed at prevention, delay, management, or treatment of a disease or condition.

SECTION 14. Said section 13 of chapter 176I of the General Laws, as so appearing, is hereby further amended by striking out subsection (g) and inserting in place thereof the following subsection:-

(g) Organizations shall ensure that the rate of payment for in-network providers of behavioral health services and in-network providers of medical nutrition therapy delivered via

118 interactive audio-video technology and audio-only telephone shall be no less than the rate of
119 payment for the same service delivered via in-person methods; provided, that this subsection
120 shall apply to providers of behavioral health services and providers of medical nutrition therapy
121 covered as required under subclause (i) of clause (4) of the second sentence of subsection (a) of
122 section 6 of chapter 176O.